

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DANIEL SHTARKMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
POLICE OFFICER ANDREW MARTINEZ,
POLICE OFFICER DENCIL PARMAR,
POLICE OFFICERS "JOHN DOE 1 THROUGH
10" (fictitious names for all other police officers
involved in this incident),Defendants.

Index No.

Purchased & Filed:

Summons with NoticePlaintiff designates Kings
County as the place of trialThe basis of venue is the
place of occurrence**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty (20) days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
July 28, 2023Yours, etc.
FREDERICK J. MARTORELL, ESQ., P.C.By: *Frederick J. Martorell*Defendants' address:
THE CITY OF NEW YORK,
POLICE DEPARTMENT OF THE
CITY OF NEW YORK, POLICE
OFFICER ANDREW MARTINEZ,
POLICE OFFICER DENCIL PARMAR
c/o Corporation Counsel
100 Church Street
New York, New York 10007Frederick J. Martorell, Esq.
Attorney for Plaintiff
188 Montague Street – Suite 850
Brooklyn, New York 11201
(347) 225-0008

Notice: The nature of this action is Tort Negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default for the relief demanded in the Complaint, with interest from June 6, 2022 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIEL SHTARKMAN,

Plaintiff,

Index No.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE DEPARTMENT
OF THE CITY OF NEW YORK, POLICE OFFICER
ANDREW MARTINEZ, POLICE OFFICER DENCIL
PARMAR, POLICE OFFICERS "JOHN DOE 1
THROUGH 10" (fictitious names for all other police
officers involved in this incident),

Defendants.
-----X

Plaintiff DANIEL SHTARKMAN, by his attorney, FREDERICK J. MARTORELL,
P.C., as and for his complaint against defendant, alleges and says as follows:

PARTIES AND JURISDICTION

1. Plaintiff DANIEL SHTARKMAN (hereinafter "Plaintiff") is, was and continues to be a resident of the Borough of Brooklyn, County of Kings, City and State of New York.
2. That the causes of action alleged herein arose in the County of Kings, City and State of New York.
3. Upon information and belief, Defendant THE CITY OF NEW YORK (hereinafter "CITY") was, is and continues to be a municipal corporation existing under the laws of the State of New York.
4. Upon information and belief, Defendant THE POLICE DEPARTMENT OF THE CITY OF NEW YORK (hereinafter "NYPD") is, was and continues to be an agency of the CITY OF NEW YORK.

5. Upon information and belief, Defendant POLICE OFFICER ANDREW MARTINEZ - Shield No. 17009 (hereinafter "MARTINEZ") was, is and continues to be an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK.

6. Upon information and belief, Defendant POLICE OFFICER DENCIL PARMAR - Shield No. 5918 (hereinafter "PARMAR") was, is and continues to be an employee of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK.

7. Upon information and belief, Defendants POLICE OFFICERS "JOHN DOE 1 THROUGH 10" (hereinafter "JOHN DOE 1 THROUGH 10") were, are and continue to be employees of THE POLICE DEPARTMENT OF THE CITY OF NEW YORK.

8. Upon information and belief, Defendant NYPD, Defendant MARTINEZ, Defendant PARMAR and Defendants "JOHN DOE 1 THROUGH 10" are official and authorized law enforcement presence.

9. That on October 11, 2022, within 90 days of June 6, 2022, the date of the occurrence herein, a notice of claim in writing was served on behalf of the Plaintiff upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal Law.

10. That although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK has neglected and has refused to pay said claims or adjust same.

11. That on February 9, 2023, a hearing pursuant to General Municipal Law Section 50-H was held.

12. That this action is commenced within one year and ninety days from June 6, 2022, the date of the occurrence as herein set forth.

13. That Plaintiff has complied with all conditions precedent to commencement of this action including but not limited to Section 394(a)-1.0 of the Administrative Code of the City of New York.

FACTUAL ALLEGATIONS

14. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs “1” through “13” as if set forth in full herein.

15. On June 6, 2022 at approximately 10:35 p.m., at the intersection of Brighton 4th Street and Brighton 4th Court in the County of Kings, City and State of New York, Defendants MARTINEZ, PARMAR and “JOHN DOE 1 THROUGH 10” acting under the color of authority and pursuant to a pattern of unconstitutional conduct to which Defendant CITY and Defendant NYPD were deliberately indifferent to, forcibly handcuffed Plaintiff DANIEL SHTARKMAN behind his back against his will without probable cause after being pulled over in the middle of the road in front of 2920 Brighton 4th Street in the Borough of Brooklyn, County of Kings, City and State of New York.

16. Plaintiff DANIEL SHTARKMAN was subjected to physical and emotional abuse during his detainment and was never read any rights as required by Federal and State law while at the location of the police stop.

17. Plaintiff DANIEL SHTARKMAN was brought to the 61st Precinct where he was held in custody for an excessive period of time wherein he was subjected to physical and emotional abuse during which time he was never read any rights as required by Federal and State law.

18. Plaintiff DANIEL SHTARKMAN was arrested without probable cause or justification by the Defendants, having been in custody against his will and without legal causes for an excessive period of time.

19. As a result of all the acts of the defendants, without reason or provocation, Plaintiff DANIEL SHTARKMAN sustained serious and permanent physical and psychological injuries.

20. Upon information and belief, Defendants MARTINEZ, PARMAR and "JOHN DOE 1 THROUGH 10" inadequate training, negligent supervision and creation of policy permitted such abuse of Plaintiff DANIEL SHTARKMAN.

21. That Defendants MARTINEZ, PARMAR and "JOHN DOE 1 THROUGH 10" and others who were present at the time Plaintiff was taken into custody, did nothing to prevent the assault, false arrest, false imprisonment and violation of the Plaintiff's civil and constitutional rights. In failing to exercise proper supervision and by failing to effectively carry out their duties as supervising police officers, they in effect allowed and condoned the assault, battery, false arrest, false imprisonment and violation of the Plaintiff's civil and constitutional rights.

22. By virtue of the U.S. Constitution and the statutes and regulations of the State of New York and, in particular Defendant CITY OF NEW YORK regulations, Defendants had and still have a duty to refrain from physical abuse of the Plaintiff. Thus, given the existence of the duties imposed the untold violation of individual's rights that have occurred, the abusive conduct alleged above was done intentionally and with complete disregard for rights secured to the plaintiff under the Constitution of the U.S. and laws of the State of New York.

AS AND FOR A FIRST COUNT
BASED UPON SECTION 42 USC SECTION 1983

23. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs “1” through “22” as if set forth in full herein.

24. The actions of the defendants were done intentionally, willfully and/or with deliberate indifference to, or reckless disregard for, the rights secured plaintiff under U.S. Constitution and with knowledge of the consequences of their acts or omissions, to wit the acts of physical and emotional abuse clearly reflected knowledge on the part of the Defendants that harmful and offensive contacts and consequences would occur. Moreover, the failure of the other defendants to this action, including Defendants CITY, NYPD, MARTINEZ, PARMAR and “JOHN DOES 1 THROUGH 10” to adequately intervene, train and create constitutionally conforming policies that protect an individual’s rights reflects deliberate indifference to the Plaintiff’s welfare and caused him injuries.

25. Defendants’ misconduct totally disregarded the rights of substantive and procedural due process guaranteed by the U.S. Constitution and 42 USC Section 1983 and caused actual damages including pain and suffering an amount not less than the minimum monetary amount of this Court and for punitive damages in the amount to be determined by the jury, both awards against the Defendants individually and in their official capacity, jointly and severally.

AS AND FOR A SECOND COUNT
OF NEGLIGENT TRAINING, RETENTION, SUPERVISION AND HIRING

26. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs “1” through “25” as if set forth in full herein.

27. The Defendants' acts of physical and emotional abuse, of creating an environment conducive to and permitting physical and emotional abuse to occur, of creating and maintaining and enforcing a policy and custom of intentionally or recklessly failing to take action constitutes and was the cause in fact of the Plaintiff's physical and severe emotional distress. The actions were extreme, wanton, intentional, excessive and outrageous by any standard of civility. Said actions give rise to a claim for relief of monetary damages to compensate Plaintiff for the violation of his constitutional rights, physical and emotional injuries.

28. Defendants CITY and NYPD were negligent in their training, retention and hiring of Defendants MARTINEZ, PARMAR and "JOHN DOE 1 THROUGH 10."

29. That Defendants MARTINEZ, PARMAR and "JOHN DOE 1 THROUGH 10" and Defendants CITY and NYPD were negligent by failing to supervise and prevent the false imprisonment, false arrest, assault, battery and violation of the civil and constitutional rights of Plaintiff DANIEL SHTARKMAN by Defendant POLICE OFFICERS.

AS AND FOR A THIRD COUNT
FOR ASSAULT AND BATTERY

30. Plaintiff repeats, realleges and reaffirms paragraphs "1" through "29" as if fully set forth herein.

31. The Defendants' actions constitute physical battery and/or conspiracy to commit and recklessly tolerate batteries at a time and under conditions that imposed on the Defendants a duty to prevent and stop such conduct.

32. The misconduct alleged in the preceding paragraphs resulted in countless actual unauthorized touching and serious physical harm to the Plaintiff and his dignity, giving rise to a claim for assault and battery under state law, for the suffering in an amount exceeding the

minimum required for the commencement of this action and for punitive damages in such amount as the jury shall determine as against the individual defendants.

**AS AND FOR A FOURTH COUNT
BASED UPON FALSE ARREST**

33. Plaintiff repeats, realleges and reaffirms paragraphs “1” through “32” as if fully set forth herein.

34. Plaintiff at all times mentioned herein was wrongfully and falsely arrested and detained in violation of his federal and state constitutional rights.

35. That at all times mentioned herein, Plaintiff was caused to sustain physical and emotional injuries as a direct result of his false arrest.

**AS AND FOR A FIFTH COUNT BASED UPON
ARTICLE 1, SECTION 11 OF THE NEW YORK STATE CONSTITUTION**

36. Plaintiff repeats, realleges and reaffirms paragraphs “1” through “35” as if fully set forth herein.

37. Article 1 Section 11 of the New York State Constitution absolutely and clearly forbids the denial of equal protection of individual rights by the state or subdivision of the state.

38. The abuse of authority alleged above gives rise to a claim for redress under state law and for which Plaintiff seeks actual damages including pain and suffering.

WHEREFORE, Plaintiff DANIEL SHTARKMAN demands judgment against Defendants on all causes of action in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction over this matter; together with interest,

costs and disbursements of this action and any such other and further relief as to this Court
deems fit.

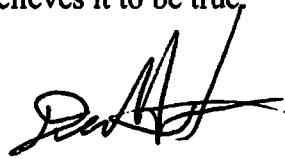
Dated: Brooklyn, New York
July 28, 2023

Frederick J. Martorell, Esq., P.C
Attorney for Plaintiff DANIEL SHTARKMAN
188 Montague Street – 8th Floor
Brooklyn, New York 11201
(347) 225-0008

VERIFICATION

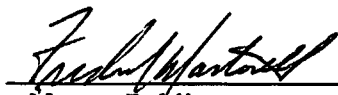
STATE OF NEW YORK)
)ss.:
 COUNTY OF KINGS)

Daniel Shtarkman, being duly sworn, depose and say: Deponent is the Plaintiff in the within action; deponent has read the Verified Complaint and know the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters deponent believes it to be true.

x  _____

Sworn to before me this

28 day of July, 2023.



 Notary Public

FREDERICK J. MARTORELL
 Notary Public, State of New York
 No. 02MA6182735
 Qualified in Kings County
 Commission Expires March 31, 2024

Index No.:

Year: 2023

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF KINGS

DANIEL SHTARKMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE DEPARTMENT OF
THE CITY OF NEW YORK, POLICE OFFICER ANDREW
MARTINEZ, POLICE OFFICER DENCIL PARMAR, POLICE
OFFICERS "JOHN DOE 1 THROUGH 10" (fictitious names for
all other police officers involved in this incident),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Frederick J. Martorell, Esq., P. C.

Attorney for Plaintiff

188 Montague Street – 8th Floor

Brooklyn, New York 11201

(3467) 225-0008

To:

Service of a copy of the within _____ is hereby admitted.

Dated:

Attorneys for

Notice of Settlement

PLEASE take notice that a _____ of which the within is a true copy will be presented for settlement to the
Hon. _____ one of the Justices of the within named Court, at _____ on
the _____ day of _____, 200__.

Dated:

Brooklyn, NY

Yours, etc.

Law Offices of Frederick J. Martorell, Esq. P.C.

Attorney for Plaintiff SHTARKMAN

188 Montague Street, 8th Floor

Brooklyn, New York 11201

347-225-0008

Notice of Entry

PLEASE take notice that the within is a (certified) true copy of a(n) _____ duly entered in the office of the
clerk of the above named Court on the _____ day of _____, 200__.

Dated:

Brooklyn, NY

Yours, etc.

Frederick J. Martorell, Esq., P. C.

Attorney for Plaintiff SHTARKMAN